HEADNOTE

> *"If the Court of First Instance has made an assessment of information and considered it confidential in a non-appealed order, unless otherwise stated in the order, this continues to apply in subsequent proceedings before the Court of Appeal (see UPC CoA order of 28 March 2024, UPC-CoA-101/2024, Curio Bioscience vs 10x Genomics; a non-appealed order by the Court of First Instance pursuant to R. 262A RoP that restricts access to certain information or evidence to specific persons, unless otherwise stated in the order, continues to apply after the proceedings, and therefore applies also to the appeal proceedings)."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Confidentiality order

PATENT
EP 2 671 173
METHOD AND MEANS FOR BROWSING BY WALKING

KEYWORDS
Access to register | confidentiality

Rule 262A Protection of Confidential Information

SUMMARY
The Court of Appeal Luxembourg issued an order concerning a confidentiality matter. The patent at issue relates to a method and means for browsing by walking. According to the headnotes of the decision, the Court of First Instance may declare information confidential. When such an order is not appealed, its confidentiality status continues to apply in subsequent appeal proceedings. The confidentiality assessment made at first instance remains binding unless the order itself states otherwise. This means that parties cannot circumvent confidentiality protections by moving to an appellate stage. Furthermore, a first instance order may restrict access to certain information or evidence to specific persons. These access restrictions continue to apply after proceedings conclude. Consequently, they remain effective during any appeal proceedings that follow. In particular, confidentiality protections established at first instance extend beyond the initial proceedings to protect sensitive information throughout the entire litigation lifecycle.